

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVBkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PETER NHO,

Petitioner

VS.

ELISE TRAN,

Respondent

) Case Number: FPT-24-378443

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING; REQUEST FOR ORDER OF VISITATION (PARENTING TIME);
REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, VISITATION
(PARENTING TIME); REQUEST FOR ORDER MOTION TO QUASH

TENTATIVE RULING

I. Custody and Visitation

The parties are ordered to appear via Zoom or in person at 10AM on 6/2/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

II. Mother's Motion to Quash

The parties are ordered to appear via Zoom or in person at 10AM on 6/2/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

Mother has not lodged with the Court which subpoena(s) she is seeking to quash. It also appears that Father has already obtained many financial records for Mother, presumably as a result of subpoena(s) he has issued. Mother shall clarify which subpoena(s) she is seeking to quash

1 and she shall be prepared to present to the Court a copy of the subpoena(s) she is seeking to quash.
2 Father shall be prepared to explain whether there are any subpoenas he served that remain
3 outstanding.
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5 **A. Procedural History**

- 6 1) Also on for hearing is Mother's Request for Order filed 3/30/2026 asking the Court to quash "the
7 subpoena seeking my bank statements." Mother argues that the subpoena "requests all bank
8 records without clear limitation or direct relevance to the issues before the Court" and is thus
9 overbroad. Mother objects that there is no compelling justification to override her right to privacy
10 and that complying with the subpoena will cause her an undue burden particularly as she is the
11 sole, full-time caregiver of Kayleigh. Mother states she has already provided her March 2026
12 bank statement and that additional records are duplicative. Mother also states that she uses her
13 Bank of America account to withdraw cash on behalf of her roommate and sister who "assist me
14 through IHSS and does not have a debit bank account." Mother states these "transactions could be
15 misinterpreted as my own spending when they are not."
- 16 2) On 4/10/2026, Father filed a Responsive Declaration asking that the Court order full compliance
17 with the subpoena within 10 days of the Court's order and that the Court issue sanctions against
18 Mother in the amount of \$5,000 under Code of Civil Procedure sections 1987.2, 2023.010, and
19 2023.030, and Family Code section 271. Father argues that his subpoena is relevant to the
20 determination of accurate child support and that Mother's privacy rights must yield where
21 information sought is directly relevant to a material issue. Father also states that the subpoenas at
22 issue were issued to financial institutions and not to Mother directly and therefore do not require
23 Mother to expend time or resources to comply. Father argues that Mother's voluntary production
24 of one March bank statement is insufficient for understanding Mother's complete financial
25 picture and that Mother's argument that her financial records could be "misinterpreted" due to
26 transactions on behalf of third parties "underscores, rather than undermines, the need for full
27 financial disclosure" because "without complete records, it is impossible to evaluate the nature,
28 frequency, and legitimacy of such transaction." Father states that he is deserving of sanctions
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1 because Mother's motion is not brought in good faith but is instead calculated to delay
2 proceedings and avoid disclosure of relevant financial information.

3 3) On 4/10/2026, Father filed a Memorandum of Points and Authorities stating that Mother operates
4 a business and receives payments through Venmo, Zelle, Cash App, and Apple Pay yet represents
5 that she earns little to no income. Father argues: California law requires full and accurate
6 disclosure of income; third-party subpoenas are proper and necessary where, as here, Mother has
7 failed to voluntarily disclose complete financial records; a motion to quash cannot be used to
8 shield relevant financial records from discovery in a child support proceeding; Mother's pattern
9 of non-disclosure constitutes discovery abuse warranting sanctions under Code of Civil Procedure
10 sections 2023.010 and 2023.030; sanctions are also warranted under Family Code section 271;
11 Mother's privacy objection does not justify quashing the subpoenas and a protective order is the
12 appropriate remedy; and the Court should order full compliance with the subpoenas and award
13 monetary sanctions.

14 4) On 4/10/2026, Father's attorney filed a declaration stating that Mother's motion fails to identify
15 which subpoenas Mother seeks to quash. Father's attorney states he has obtained various financial
16 documents pertaining to Mother and he has lodged them with the Court. Father's attorney states
17 he is filing his declaration to clarify that Mother's motion to quash provides no basis to prevent
18 the Court from reviewing and considering the documents lodged with the Court.

19 5) On 4/16/2026 and 4/28/2026, Father electronically lodged with the Court the following
20 documents: Mother's Bank of America Statements from December 2024 to December 2025;
21 Mother's Bank of America Statements from January 2026 to April 2026; Mother's Venmo and
22 PayPal Records Summary for March 2013 through April 2026; Mother's Venmo and PayPal
23 Transaction Records for January 2024 through April 2026, and Mother's Venmo and PayPal
24 Transaction Records for 2026.

25 6) Per the Proof of Service filed by Father on 4/17/2026, "Respondent's Financial Documents to be
26 Lodged Under Seal" were served on Mother by mail on 4/17/2026.

27 7) On 5/27/2026, Mother filed a Responsive Declaration wherein she incorrectly cites a hearing date
28 of 6/4/2026. Mother's Responsive Declaration references an MC-030, which the Court does not
29 see in the record, as well as an Income and Expense Declaration.

- 1 8) On 5/27/2026, Mother filed an Income and Expense Declaration wherein she states she earns
2 \$800 in net income per month from her business TheNailMami and receives \$1,192 per month in
3 child support from Father. Mother states her monthly expenses total \$3,100 and that \$3,000 of
4 those expenses are “paid by others.” Mother attached documentation which appears to show that
5 her partner and godmother provide her with financial assistance. Mother further states that she
6 has serious health conditions that severely limit her ability to maintain a stable job. Mother does
7 not specify what health conditions she suffers from, but attaches various records showing a
8 significant number of contacts with medical providers over the past couple of years as well as an
9 extensive list of medications prescribed to her. Mother states she cannot afford to pay the
10 attorney’s fees requested by Father.
- 11 9) On 5/27/2026, Mother filed a Proof of Service stating that various (unspecified) documents were
12 faxed to Father’s attorney on 5/27/2026.
- 13 10) On 5/28/2026, Father’s attorney filed a declaration wherein he incorrectly cites a hearing date of
14 6/4/2026. Father’s attorney states he did not receive a copy of Mother’s Responsive Declaration
15 or Income and Expense Declaration filed 5/27/2026, which he only learned about by reviewing
16 the Court’s docket.
- 17 11) The Court notes there is a future hearing currently set for 6/16/2026 on Father’s Request for
18 Order filed on 4/10/2026 wherein Father requests the Court to modify the child support order
19 filed in related Case No. FCS-24-356892 based on changes to Father’s employment and income.
20 Father also alleges that Mother is underreporting or failing to fully disclose her income.

21 **B. Findings and Order**

- 22 1) **Mother has not lodged with the Court which subpoena(s) she is seeking to quash. It also**
23 **appears that Father has already obtained many financial records for Mother, presumably**
24 **as a result of subpoena(s) he has issued. The parties are ordered to appear. Mother shall**
25 **clarify which subpoena(s) she is seeking to quash and she shall be prepared to present to the**
26 **Court a copy of the subpoena(s) she is seeking to quash. Father shall be prepared to explain**
27 **whether there are any subpoenas he served that remain outstanding.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JONATHAN CONNER,

Petitioner

VS.

JESSICA BEVILACQUA,

Respondent

) Case Number: FPT-24-378511

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Per agreement of the parties, the hearing in this matter is vacated.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JASMINE SHAVON WILLIAMS,

Petitioner

VS.

ADRIEN EUGENE GODBOLD,

Respondent

) Case Number: FPT-25-378795

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: MOTION TO TRANSFER VENUE

TENTATIVE RULING

The parties are ordered to appear via Zoom or in person. Father shall be prepared to explain why he believes Mother and the minor child live in Oakland rather than in San Francisco. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) On 12/10/2025, Petitioner Jasmine Williams (Mother) filed a Petition to Determine Parental Relationship of minor child, Brince (DOB: 4/16/2021, age 5). Mother alleges that Respondent Adrien Godbold is the child's father. Mother stated in the Declaration Under UCCJEA attached to her Petition that the child had lived with her between birth through present in San Francisco. Mother attached a copy of the child's birth certificate to her Petition which lists Respondent as the child's father and which states that the child was born in San Francisco.
- 2) On 4/8/2026, Respondent filed a Response to the Petition and agrees that he is the child's father. According to the Declaration Under UCCJEA attached to Respondent's Response, the child has lived in the following places: from birth to January 2022 in Oakland, CA with both parents; from

1 January 2022 – May 2022 in Fairfield, CA with Mother; from May 2022 – December 2022 in Las
2 Vegas, NV with Mother; from December 2022 – April 2023 in Fairfield, CA with Mother; and
3 from 4/2023 – present in Oakland, CA with Mother.

- 4 3) On 4/8/2026, Respondent filed a Request for Order asking that the Court transfer venue of this
5 case to Alameda County under Code of Civil Procedure sections 397 and 397.5. Father states, that
6 the minor child lives in Oakland, “Everyone involved in this case lives in Oakland or in Contra
7 Costa County,” and “Moving the case to Alameda county is more convenient for everyone in this
8 case because Contra Costa is closer to Alameda county. Travel to San Francisco would take at
9 least an hour and it would take thirty minutes to travel to Oakland. There are also tolls to enter
10 San Francisco and I am currently unemployed and living on Unemployment.”
- 11 4) Per the Proof of Service filed 4/8/2026, Father’s Response to the Petition, Request for Order,
12 blank Responsive Declaration, and the Tentative Ruling Instructions were mailed to the address
13 the Court has on file for Mother.
- 14 5) The Court notes that the address the Court has on file for Mother is in San Francisco and the
15 address the Court has on file for Father is in Hercules.
- 16 6) Mother did not file a Responsive Declaration.

17 **B. Findings and Order**

- 18 1) **The parties are ordered to appear. Father shall be prepared to explain why he believes**
19 **Mother and the minor child live in Oakland rather than in San Francisco.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JONATHAN ROACH,

Petitioner

VS.

DEVENE TOBIE,

Respondent

) Case Number: FLD-24-397201

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Jonathan Roach (Father) and Devene Tobie (Mother) have one minor child together, Nasir Tobie (DOB 9/20/20, age 5).
- 2) On 7/17/24, a juvenile custody order was filed granting the parties joint legal custody of Nasir, with physical custody to Father and parenting time for Mother every Friday to Saturday and additional parenting time as agreed by the parties.
- 3) At a 12/11/2025 hearing, the Court ordered that Mother shall have parenting time every other Friday at 6pm to Sunday at 6pm. At a 3/3/2026 review hearing, the Court maintained the orders, with a modification regarding exchange location and ordered the parties to file and serve update declarations at least 10 days before the next review hearing on 6/2/2026.
- 4) On 5/13/2026, Mother filed an update declaration stating that the parties have been following a parenting time for schedule that gives Mother parenting time from Friday school pick up to Monday school drop off. She states that Father agreed to this parenting time schedule and said he would sign a stipulation to that effect, but has not yet done so. She asks for an order that reflects

1 the current actual parenting time schedule because it has been working well for the parties and is
2 in the child's best interests.

3 5) Father has not filed an update declaration.

4 **B. Findings and Order**

5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child is the United States.

9 2) The Court maintains the current order for joint legal custody to the parties. Mother's parenting
10 time shall be every Friday afternoon to Monday morning, with the exchanges to take place at
11 school or camp when school or camp is in session. When school or camp is not in session, the
12 exchanges shall occur on Fridays at 6pm and Mondays at 9am at Mother's home, curbside, unless
13 the parties agree in writing (text message or email is acceptable) to different times and locations.

14 3) Either party may file a new request for order if they would like further changes to be made to the
15 custody and parenting time order and are unable to reach an agreement.

16 4) The Court will prepare the Findings and Order After Hearing.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HA T. NGUYEN,

Petitioner

VS.

LORIS ZUCCHETTI,

Respondent

) Case Number: FDI-13-778567

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER REQUEST TO VACATE/STIPULATED JUDGMENT OF LEGAL
SEPARATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Ha T Nguyen and Respondent Loris Zucchetti. The parties have no minor children.
- 2) On 1/25/2013, a Stipulated Judgment of Legal Separation was entered in this matter, terminating the Court's jurisdiction to award spousal support to either party and confirming there are no community property assets or debts to divide.
- 3) Now on for hearing is a Request for Order filed by Petitioner Ha T. Nguyen on 4/7/2026 asking that the Court vacate the Judgment of Legal Separation entered on 1/25/2013. Petitioner states: "I filed a Petition for Legal Separation in 2013. At that time, my husband and I agreed to a legal separation primarily for financial and legal reasons, including concerns related to credit and asset structuring... We have since reconciled and wish to remain legally married. We respectfully request that the Court vacate the judgment of legal separation so that our legal status accurately reflects our mutual intent to continue our marriage."

1 4) Attached to Petitioner's Request for Order is a declaration signed by Respondent which states: "I
2 have read the Request for Order... I support the request to vacate the legal separation
3 judgment..."

4 5) Per the Proof of Personal Service filed on 4/22/2026, Petitioner's Request for Order was
5 personally served on Respondent on 4/12/2026.

6 6) Respondent did not file a Responsive Declaration.

7 **B. Findings and Order**

8 1) Petitioner's unopposed Request for Order is hereby granted.

9 2) The Court hereby vacates the Stipulated Judgment of Legal Separation filed 1/25/2023.

10 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SWATI SALUNKE,

Petitioner

VS.

VIKRAM SALUNKE,

Respondent

) Case Number: FDI-19-790987

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: FINANCIAL SETTLEMENT FROM COMMUNITY PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

- 1) On for hearing is Respondent's Request for Order filed 4/7/2026.
- 2) There is no Proof of Service on file for Respondent's Request for Order and Petitioner did not file a Responsive Declaration.
- 3) The hearing on Respondent's Request for Order is hereby continued to **Tuesday, 8/11/2026 at 9:00 AM in Dept. 404.**
- 4) By the deadlines set forth in the Code of Civil Procedure, Respondent shall have the following documents served on Petitioner:
 - a. Respondent's Request for Order filed 4/7/2026
 - b. Blank Responsive Declaration
 - c. Tentative Ruling Instructions
 - d. Findings and Order After Hearing for the 6/2/2026 hearing date (which will be mailed to Respondent)
- 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TONY TROUSSET,

Petitioner

VS.

ERIN KELLEY,

Respondent

) Case Number: FDI-21-794361

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS, ENFORCEMENT OF MSA CHILD
SUPPORT ORDERS AND 271 SANCTIONS *PORTIONS SEALED PER 3/18/26 COURT ORDER*

TENTATIVE RULING

The parties are ordered to appear via Zoom or in person at 10AM on 6/2/2026 in Department 404.

**If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for
Remote Appearance in San Francisco Family Court set forth above.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JAMES S HAGLER,	)	Case Number: FDI-21-794411
Petitioner	)	Hearing Date: June 2, 2026
VS.	)	Hearing Time: 9:00 AM
KRISTEN E RASMUSSEN,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER: CHANGE OF SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Per agreement of the parties, the hearing in this matter is hereby vacated.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DORA LUZ MACIAS SANCHEZ,

Petitioner

VS.

ADAN MIGUEL VELAZQUEZ BLAS,

Respondent

) Case Number: FDI-24-800170

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT, ATTORNEY
FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Dora Macias Sanchez (Wife) and Respondent Adan Velazquez Blas (Husband). The parties married on 9/30/2000. The parties agree they separated in December 2023, for a marriage of 23 years and 2 months. The parties have no minor children in common (their child Gabriel turned 18 on 10/6/2025). No Judgment has been entered in this case to date. Both parties are currently self-represented.
- 2) Per the Findings and Order After Hearing filed 12/20/2024, at the prior 12/17/2024 hearing, Judge Costin ordered Husband to pay Wife \$1,361 per month in temporary spousal support effective 1/1/2025 (based on Husband's statement that he earns \$7,366 per month as the CEO of a construction company and Wife's statement that she earns \$1,776 per month as a home health aide).
- 3) Per the Findings and Order After Hearing filed 3/21/2025, at the prior 3/20/2025 long-cause hearing, then Commissioner Luna maintained Judge Costin's order requiring Husband to pay

1 Wife \$1,361 per month in temporary spousal support and also ordered Husband to pay Wife
2 \$1,365 per month in child support. Judge Luna also denied Husband's request to impute
3 minimum wage to Wife. Judge Luna further ordered Husband to pay Wife \$5,500 in need-based
4 attorney's fees.

5 4) Per the Findings and Order After Hearing filed 8/26/2025, at the prior 8/21/2025 hearing, Judge
6 Costin adjudicated Husband's Request for Order filed 5/27/2025 asking the Court to modify the
7 current support orders based on his statements that he is on disability and not physically able to
8 work. Husband stated that he had been paying support from his savings which had been depleted.
9 The Court modified the child and spousal support orders and ordered Husband to pay Wife \$656
10 per month in guideline child support and \$176 per month in guideline spousal support, for a total
11 of \$832 per month (based on an imputation of \$3,323 in full-time minimum wage income to
12 Husband and a finding that Wife earns average monthly income of \$1,800).

13 5) On 9/12/2025, Husband filed a document entitled "Preliminary Declaration of Disclosure."
14 Husband included as an attachment an Income and Expense Declaration dated 9/2/2025 which
15 states that Husband is unemployed. Husband listed Wells Fargo business and personal checking
16 accounts with a balance of \$27,000 and \$100,000 in a Robin Hood account.

17 6) On 12/11/2025, Wife filed the instant Request for Order. Wife states Husband refuses to provide
18 her with current bank statements. Wife states Judge Costin admonished Husband in September
19 2024 that Mexico had no jurisdiction over the divorce, yet Husband continued with the divorce
20 proceeding in Mexico and received a final judgment in October 2024. Wife states Husband
21 claims he no longer needs to provide material updates regarding his finances to Wife for this
22 reason. Wife attached a declaration by her older adult son Arturo Macias dated 9/19/2025 who
23 states he saw Husband directing two of his employees to load a truck with construction debris on
24 9/7/2025. Arturo also states that "on a later date," he encountered Husband at a restaurant and
25 Husband told him that if he testified against him, they would "end up bad" which Arturo states he
26 understood as a threat. Wife attached a photograph which shows a "no stopping" posting for the
27 dates 10/15/2025 – 1/15/2026 which bears an address on Guerrero Street and which also states,
28 "Future General Construction Inc. (415) 373 – 8527." Wife further attached a document from the
29 IRS dated 10/14/2025 which states, "The payee information you reported on Form 1099 for tax

1 year 2024 may be incorrect.” Wife states this document shows that Husband was paying his
2 employees and reporting those payments to the IRS. Wife asks the Court to:

- 3 a. Order Husband to file and serve a current, complete, and accurate Income and Expense
4 Declaration.
 - 5 b. Order Husband to provide all current bank statements, investment account statements,
6 credit card statements, and business records, including but not limited to records of
7 Future General Construction.
 - 8 c. Order monetary sanctions against Husband for failure to comply with disclosure
9 requirements, including attorney’s fees and costs incurred by Wife.
 - 10 d. Order Husband to pay attorney’s fees for increased litigation caused by his misconduct
11 under Family Code sections 2030 – 2032 and 271.
 - 12 e. Order Husband to produce all contracts, agreements, and related documents for the
13 construction project associated with the city permit issued to Future General
14 Construction, including contracts with property owners, subcontractors, or clients.
 - 15 f. Draw an adverse inference that Husband has been working and earning income during
16 the period he claimed unemployment, based on evidence of construction work, city-
17 issued permits, and business activity.
 - 18 g. Impute income to Husband consistent with his earning capacity and prior unemployment
19 income.
 - 20 h. Reinstate or modify child and spousal support to reflect Husband’s actual income or
21 earning capacity.
 - 22 i. Order Husband not to transfer, hide, or dissipate assets until property disclosure is
23 provided.
 - 24 j. Order Husband not to close or move accounts without notice to Wife.
- 25 7) Wife’s 12/11/2025 Request for Order was first set for hearing on 1/16/2026 before Judge Gold.
26 At that hearing, both parties appeared in pro per. Per the Findings and Order After Hearing filed
27 1/28/2026, Judge Gold denied Wife’s request for discovery because Wife “did not submit the
28 required documents for the discovery motion.” Judge Gold also continued the hearing on Wife’s
29 requests for support and attorney’s fees to 3/17/2026 in Dept. 404.

- 1 8) At the 3/17/2026 hearing, the Court ordered the parties to appear in order for the Court to hear
2 additional argument from the parties. At the time the case was called, Husband was present, but
3 Wife was not. The Court continued the hearing to 4/9/2026 because it believed Wife had
4 appeared on Zoom at some point that morning and because a Spanish interpreter was not
5 available to translate for Husband.
- 6 9) On 3/30/2026, Husband filed a Responsive Declaration. Husband states he previously provided
7 bank and financial records for 2024 and 2025, including records through October and November
8 2025, and that Wife is seeking duplicative information. Husband states that the construction
9 project referenced by Wife was permitted in October 2025, work began in early November 2025,
10 and the project is being performed by licensed subcontractors. Husband states that no net income
11 has yet been realized and any funds received have been used to pay subcontractors and materials.
12 Husband states his anticipated compensation is approximately 10% and has not yet been received.
13 Husband states that their son Gabriel turned 18 on 10/6/2025 and he requested documentation
14 verifying that Gabriel is still enrolled and attending high school, but no documentation has been
15 provided. Husband states that in January 2026 he visited Downtown High School and was told
16 that Gabriel was completing the remainder of his coursework online, had accumulated 90 work
17 hours during that semester, and was expected to finish his coursework in February 2026. Husband
18 states that because Gabriel has not been a full-time high school student, he is not obligated to
19 continue to pay child support for Gabriel. Husband further asks the Court to strike or disregard
20 Exhibit F of Wife's Request for Order which consist of an IRS notice which was addressed to
21 Husband's business entity and was opened and submitted without his authorization. Husband
22 attached to his declaration: an Income and Expense Declaration stating that he is currently
23 earning \$0, a contract for Future General Construction dated October 2025, various subcontractor
24 agreements, bank statements for October – November 2025, various medical records for himself,
25 an English translation of a divorce certificate from Mexico (which Husband represents granted a
26 divorce of the parties on 12/13/2024, but does not address any support or property issue), and a
27 letter dated 1/22/2026 from Downtown High School which states: "Gabriel Vazquez... is taking
28 an online course with us and is halfway through. He should be done in February. Also he is
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1 submitting 90 work hours this semester and then he will be officially done. Gabriel will have a
2 ceremony in June.”

3 10) There is no Proof of Service on file for Husband’s 3/30/2026 Responsive Declaration.

4 11) At the 4/9/2026 hearing, Wife appeared but Husband did not. The Court continued the matter to
5 6/2/2026. The Court also ordered Husband to file a Proof of Service confirming that his
6 Responsive Declaration was served on Wife.

7 12) On 5/22/2026, Wife filed a Declaration which Wife states is “in response to Respondent’s
8 declaration.” Wife provided records which Wife states show the following projects and permits
9 associated with Husband: 2134 Lincoln Way, San Francisco — Application No. 202405142072,
10 permit triage date May 14, 2024, final inspection/completion July 15, 2024; 3562 Sacramento
11 Street, San Francisco — Application No. 202504245119, permit date April 24, 2025, stated
12 permit price approximately \$20,000, and records showing the project reached completion/final
13 stage around November 21, 2025; 4490 Mission Street, San Francisco — Application No.
14 202604300436, permit date April 30, 2026, final inspection/completion May 19, 2026; and
15 additional projects appearing in public records include 1675 Eddy Street, 651 37th Avenue, 332
16 Fell Street, and additional construction-related projects during 2023, 2024, 2025, and 2026. Wife
17 states that Husband stopped paying child and spousal support after October 2025. Wife
18 acknowledges that Gabriel turned 18 on 10/6/2025, but states that support can continue for a child
19 who is a full-time high school student. Wife states that Husband should not be permitted to
20 selectively use school-related information solely for purposes of avoiding support obligations.

21 Wife asks the Court to:

- 22 a. Order Husband to provide documentary proof of his claims that the construction project
23 referenced by Wife was performed by subcontractors and that funds received were paid
24 for subcontractors and materials and that his compensation from the project was expected
25 to be only 10%
 - 26 b. Order Husband to disclose all personal and business accounts, including any accounts
27 connected to Zelle, Venmo, Cash App, Apple Pay, PayPal, or similar payment
28 applications
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- c. Order Husband to provide current, complete medical records to support his claims that he cannot perform physical labor due to medical conditions
 - d. Order Husband to provide complete records relating to any Uber, Lyft, or other rideshare or delivery platform accounts operated by Husband because Husband previously represented that he purchased a vehicle so he could work for Uber
 - e. Order Husband to provide copies of his complete passport records showing repeated travel between the United States and Mexico
 - f. Deny Husband's request to strike the IRS notice which she states supports her need for further disclosure and investigation regarding Husband's business and potential reporting issues involving payments. Wife states the IRS notice was not improperly obtained as it was received at her home address.
 - g. Disregard any documents or proceedings from Mexico as Husband did not provide properly authenticated records, certified translations, and competent evidence establishing their reliability. Wife also argues this case is pending in California, both parties reside in the United States, and support obligations should be determined under California law and based on reliable evidence.
 - h. Maintain or reinstate appropriate child and spousal support orders
 - i. Order payment of arrears and any unpaid support obligations
- 2) There is no Proof of Service on file for Wife's 5/22/2026 Declaration.

B. Findings and Order

- 1) Regarding Wife's request that the Court "disregard any documents or proceedings from Mexico," although Wife states that Judge Costin previously admonished Husband that Mexico has no jurisdiction to resolve the issues in the parties' divorce case, there is no such statement in the Court's prior Findings and Orders After Hearing regarding this issue. Husband asserts that Mexico ordered the parties divorced as of 11/8/2024, yet Husband continued to litigate claims in this case (and this Court continued to make orders regarding child and spousal support) well past that date. Husband has also not provided evidence to date that Mexico has made any orders regarding support or property division. The Court does not have sufficient information before it to

1 make a finding that it does not have jurisdiction to continue making orders related to child and
2 spousal support. This Court will continue to make orders in this case on these grounds.

- 3 2) Husband provided evidence which appears to show that Gabriel has recently not been a full-time
4 high school student. Wife provided no proof that Gabriel has been a full-time high school student
5 between 10/6/2025 (when Gabriel turned 18) through the present date. The Court therefore finds
6 that Wife has not met her burden to establish that Husband's duty to pay child support continued
7 beyond Gabriel's eighteenth birthday pursuant to Family Code section 3901. Wife's request that
8 the Court order child support arrears effective October 2025 is denied. Similarly, Wife's request
9 that the Court modify child support retroactive to the date she filed the instant Request for Order
10 (12/11/2025) is denied.
- 11 3) Wife's request that the Court order Husband to provide documentation regarding his business
12 activities, earnings, financial holdings, medical condition, and travel is denied. If there is
13 additional information that Wife seeks, she must conduct discovery.
- 14 4) Regarding Wife's request to increase temporary spousal support based on purported additional
15 earnings by Husband, the Court finds that the limited evidence that Wife has presented to date
16 does not clearly show that Husband is earning more than the amount the Court previously
17 imputed to Husband (i.e., \$3,323 per month in full-time minimum wage income). Wife's request
18 to modify the income attributed to Husband for purposes of calculating temporary spousal
19 support is therefore denied without prejudice. As stated above, Wife may conduct discovery. If
20 she discovers additional admissible evidence that supports her claims, she may file a new Request
21 for Order.
- 22 5) However, the termination of child support does warrant a modification of temporary spousal
23 support. Effective 12/11/2025 (the date Wife filed her Request for Order), in accordance with the
24 XSpouse attached hereto and incorporated herein (which uses the same inputs for the parties'
25 incomes used in the XSpouse attached to the Findings and Order After Hearing filed 8/26/2025),
26 Husband is ordered to pay Wife \$306 per month in temporary guideline spousal support, which
27 Husband shall pay Wife by the 15th of each month.
- 28 6) The Court finds that Father owes to Mother temporary spousal support arrears in the amount of
29 \$197 for the period 12/11/2025 – 12/31/2025 and \$1,530 for the period 1/1/2026 – 5/31/2026, for

1 total temporary spousal support arrears due and owing of \$1,727. Husband shall pay this amount
2 plus an additional \$306 for temporary spousal support for June 2026 (for a total of \$2,033) to
3 Wife no later than 6/15/2026. Husband shall thereafter continue to pay to Wife temporary spousal
4 support of \$306 by the 15th of each month until further order of the Court or agreement of the
5 parties.

6 7) Regarding Wife's request that the Court order Husband "not to transfer, hide, or dissipate assets
7 until property disclosure is provided" and "not to close or move accounts without notice to Wife,"
8 the Court notes that the Standard Family Law Restraining Orders set forth in Family Code section
9 2040 remain in full force and effect.

10 8) Wife's requests for attorney's fees sanctions is denied as Wife has not presented evidence that she
11 has actually incurred attorney's fees in this matter to date.

12 9) Wife did not provide the information required by California Rules of Court, rule 5.427(b) to
13 support her request for need-based attorney's fees and therefore her request is denied without
14 prejudice to a new Request for Order which includes all of the necessary information.

15 10) Husband's request to strike or disregard Exhibit F of Wife's Request for Order is granted. The
16 Court will disregard Exhibit F of Wife's Request for Order.

17 11) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Husband	Wife	Monthly figures	Cash Flow			
#of children	0	0	2026		Guideline	Proposed	
% time with NCP	0.00 %	0.00 %		Comb. net spendable	4370	4370	
Filing status	SINGLE	SINGLE	GUIDELINE	Percent change	0%	0%	
# exemptions	1 *	1 *	Nets(adjusted)	Husband			
Wages+salary	3323	1800	Husband	2768	Payment cost/benefit	-306	-306
Self-employed income	0	0	Wife	1602	Net spendable income	2462	2462
Other taxable income	0	0	Total	4370	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	56%	56%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	0	Total taxes	555	555
401(k) employee contrib	0	0	S.Clara SS	306	Dep. exemption value	0	0
Adjustments to income	0	0	Total	306	# withholding allowances	0	0
SS paid prev marriage	0	0	CS range: 0-0		Net wage paycheck	2656	2656
CS paid prev marriage	0	0			Wife		
Health insurance	0	0			Payment cost/benefit	306	306
Other medical expense	0	0			Net spendable income	1908	1908
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	44%	44%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	0	Total taxes	198	198
Qual bus income ded	0	0	SS	306	Dep. exemption value	0	0
Required union dues	0	0	Total	306	# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	1500	1500
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Husband pays Guideline SS, Proposed SS

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARISOL STEPHANIE RIVAS,

Petitioner

VS.

ELISEO ORTEGA,

Respondent

) Case Number: FDV-18-813731

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Marisol Stephanie Rivas (Mother) and Respondent Eliseo Ortega (Father) have one minor child together, Jeremiah (DOB 7/4/17, age 8). Mother has sole legal and physical custody of Jeremiah.
- 2) On 11/26/2025, Mother filed a request to suspend Father's visits until he received treatment and demonstrated stability and safe behavior. She stated that Father continues to drink, hit Jeremiah during a visit, was involved in a physical altercation with a group of men, was seeing Jeremiah only once or twice a month, that Jeremiah was afraid of Father, and that the paternal grandmother who was supervising the visits pursuant to the last court order, was no longer willing to be the supervisor because Father was "so disrespectful."
- 3) At a 3/3/2026 hearing, the Court ordered that Father shall have one-hour weekly visits through Rally Family Visitation Services (Rally) as well as texts, phone calls, or video calls with the child per Mother's discretion. The Court ordered the parties to reach out to Rally within 5 days of the

1 hearing and to file and serve update declarations at least 10 days before the next review hearing
2 of 6/2/2026.

- 3 4) Neither party has filed an update declaration and there is no indication that Rally visits have
4 begun.

5 **B. Findings and Orders**

- 6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 child is the United States.
- 10 2) The Court maintains the current custody and parenting time order. The parties shall complete
11 their intake with Rally immediately if they have not yet done so, so that Rally visits may begin.
12 The matter is set for a further review hearing on **11/3/2026 at 9AM in Department 404**. The
13 parties shall file and serve update declarations at least 10 days before the review hearing
14 informing the Court how the Rally visits are going and to make any requests for any changes to
15 the current custody and parenting time order.
- 16 3) The Court will prepare the Findings and Order After Hearing.
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